

Court No. - 35

Case :- WRIT - C No. - 48874 of 2017

Petitioner :- Chitrapal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kuamr Singh

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

Put up day after tomorrow i.e. 26.10.2017 as fresh to enable learned Counsel for the respondent no.4 to seek instructions.

Order Date :- 24.10.2017

S.P.

Court No. - 35

Case :- WRIT - C No. - 48874 of 2017

Petitioner :- Chitrapal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kuamr Singh

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

Put up on Monday i.e. 30.10.2017 as fresh in order to enable the petitioner to file a supplementary affidavit clearly stating that he has received copy of the provisional assessment from the respondents or not.

Order Date :- 26.10.2017

S.P.

Court No. - 35

Case :- WRIT - C No. - 48874 of 2017

Petitioner :- Chitrapal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kuamr Singh

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

Supplementary Affidavit filed today is taken on record.

The instructions have been received by learned Counsel for the respondent. He may file a short counter affidavit within the next one week.

List this matter after one week on 6th November, 2017.

Order Date :- 30.10.2017

S.P.

Court No. - 35

Case :- WRIT - C No. - 48874 of 2017

Petitioner :- Chitrapal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kuamr Singh

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

List in the next cause list.

Order Date :- 6.11.2017

Atul kr. sri.

Court No. - 40

Case :- WRIT - C No. - 48874 of 2017

Petitioner :- Chitrapal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pramod Kuamr Singh

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Heard Devottum Pandey, learned counsel for the petitioner and Sri Chandan Agarwal, leaned counsel for the respondent no.4 and the learned Standing Counsel for the respondent nos. 1,2 and 3.

This writ petition has been filed praying for quashing of the impugned recovery citation dated 18th January, 2017 for a sum of Rs. 2,12,651 on the ground of assessment of consumption of electricity against the petitioner for running a five horse power tube well for irrigation.

It is undisputed that the petitioner was also found utilizing the said electric connection for running a poultry farm as well. It is this theft which was reported and ultimately the petitioner moved for compounding and got the said proceedings of theft compounded under Section 152 of the Indian Electricity Act.

The provisional assessment followed whereafter the recovery proceedings have been set into motion. Learned counsel for the respondent Sri Chandan Agarwal submits that the provisional assessment order dated 2nd June, 2015 was passed whereupon the petitioner had been called upon file his objection and in the absence of any objections having been filed the said provisional assessment has been treated to be a final order for which the recovery has been initiated.

Having heard the learned counsel for the parties. The facts remains that the provisional assessment order has been passed against the petitioner but no order of final assessment has been actually communicated to the petitioner or even passed by the respondents. It is the provisional assessment order which has been treated to be final on the basis whereof the recovery has been proceeded with. This does not appear to be in consonance with the provisions of Section 126 of the Electricity Act, 2003 read with the provisions of U.P.

Electricity Supply Code 2005. The final assessment order has to be passed as held by this Court in the case of ***Ashok Kumar Vs. State of U.P. 2008 (6) ADJ 660.*** Consequently, the recovery is not founded on the final assessment order which ought to have been passed as indicated above. As a result of the aforesaid conclusions drawn, we allow this writ petition and quash the recovery citation dated 18th January, 2017 annexure 7 to the writ petition.

It shall be open to the respondent no.4 to proceed to pass a final assessment order within three weeks' and it shall also be open to the petitioner to file an objection to the provisional assessment within 10 ten days from today. In the event, the petitioner is still aggrieved he will have a right of appeal under Section 127 of the Act.

Consequently, the writ petition stands allowed subject to the observations made hereinabove.

Order Date :- 16.4.2018

M. ARIF